YOUR FIRST-TIME BUYER ROADMAP

The key steps, forms, and deadlines from first tour to keys, Massachusetts edition

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Start here

Buying in Massachusetts works differently than most people expect:

- There's **no required general seller condition disclosure form** (lead paint in pre-1978 homes is the main exception).
- You sign two contracts instead of one.
- Attorneys run the closing.

If nobody walks you through it, the deadlines sneak up fast.

This roadmap covers the decision to buy a first home in Newton, whether you're touring next weekend or just starting to save. It puts the key steps in order, flags the forms you'll see, and gives you a checklist for each stage.

Read it once now, then come back to the stage you're in.

Stage 1: Before you tour

- ☐ Talk to a lender and get a pre-approval letter before you start touring seriously.
- ☐ If you might use a first-time buyer or assistance program, take a CHAPA-approved homebuyer education course. Many MassHousing, MHP's ONE Mortgage, and down payment assistance programs ask for the certificate. Course providers say it stays active for two years.
- ☐ Expect to sign a written buyer agreement before touring homes with any agent, in person or virtually. Read what services it covers and how compensation is defined. Visiting an open house on your own doesn't require one.
- ☐ At your first personal meeting about a specific property, a Massachusetts agent gives you the Massachusetts Mandatory Licensee-Consumer Relationship Disclosure. It explains the types of agency relationships, such as seller's agent, buyer's agent, and facilitator, so you know whom the agent represents.
- ☐ Choose a real estate attorney now, not after your offer is accepted.
- ☐ Choose a licensed home inspector. Lead testing is usually done by a separate licensed lead inspector.
- ☐ Write down and rank your non-negotiables: commute, outdoor space, parking, layout, and the condition you're willing to take on.

Jared's take

Most first-time buyers pick their inspector and attorney in a scramble after the offer is accepted. **Do it now**. In Massachusetts the inspection window is often just days, and the people you want book up.

Stage 2: The Massachusetts process, step by step

1. Offer to Purchase.

You sign an offer with a deposit. In Massachusetts an accepted offer can be a binding contract, so read every line before you sign. Before you sign your first written contract (usually the Offer to Purchase), you and the seller both sign the Massachusetts Mandatory Residential Home Inspection Disclosure.

2. Inspection period.

Your offer sets the deadline, usually about a week to 10 days. Book the general inspection plus any add-ons: radon, pests, sewer line.

3. Lead paint window (homes built before 1978).

In Massachusetts you get at least 10 days (longer if you and the seller agree) to have a lead inspection or risk assessment done before you sign the purchase and sale, if you choose to. You can also waive it in writing. The 10-day window doesn't apply to foreclosure sales. The seller must give you the state's Property Transfer Lead Paint Notification and disclose any known lead hazards. The seller also completes the lead "Seller's Disclosure" on the Property Transfer Notification Certification and gives you any lead reports or letters of compliance.

4. Purchase and Sale Agreement (P&S).

The longer contract that replaces the offer. Your offer sets the date to sign it. Have your attorney review and negotiate it. Inspections are typically completed before the P&S is signed, so inspection findings get negotiated before you sign. Ask your attorney what deposit is due at signing.

5. Mortgage commitment date.

The P&S sets a date by which your lender must commit. Put it on your calendar, and ask your attorney what happens to your deposit if it slips. Federal rules set two lender deadlines: your lender must give you a Loan Estimate within 3 business days of receiving your mortgage application, and you must receive the Closing Disclosure at least 3 business days before closing. Compare the two line by line.

6. Seller's smoke and CO certificate.

The seller gets a certificate of compliance from the local fire department before the sale. Your attorney should confirm it's handled.

7. Condo?

Your attorney will need a 6(d) certificate from the condo trustees showing no unpaid common charges.

8. Final walk-through, shortly before closing.

Confirm the home's condition and that agreed repairs are done.

9. Closing.

A Massachusetts attorney must be substantively involved, but on a financed purchase the closing attorney typically represents your lender. Your own attorney is there for you.

Stage 3: Your inspection rights (since October 15, 2025)

Under the state regulation 760 CMR 74.00:

- A seller can't make your offer's acceptance dependent on you waiving or limiting a home inspection.
- A seller can't accept an offer that says you intend to waive the inspection.
- Contract terms that make an inspection meaningless aren't allowed. Examples: unreasonable scheduling limits, such as only 24 hours to schedule one.
- The disclosure form confirms your right to an inspection by a licensed home inspector of your choice.
- You can still choose to skip or limit one, but only on your own, after receiving the disclosure, with no pressure from the seller's side.
- Some types of sales are exempt, such as family transfers, foreclosures, and auction sales. Ask your attorney whether yours is.

Jared's take

Without a general seller condition disclosure, your inspection is your best look at the house. Sellers can't misrepresent the home, and agents must disclose known material defects, so ask your questions in writing. Newton can be competitive, but there are better ways to strengthen an offer than giving up your one real look at the house. Let's talk through those before you write.

Stage 4: Old-house inspection checklist

48.8% of Newton's housing units were built before 1940 (U.S. Census Bureau, ACS 2020-2024 5-year estimates). Older homes have character, and they come with specific things to check.

Ask your inspector about:

- ☐ Lead paint (a separate licensed lead inspector; usually not part of a standard inspection)
- ☐ Electrical: older wiring types, panel capacity, ungrounded outlets
- ☐ Heating system age and fuel type, and any sign of an old oil tank, above or below ground
- ☐ Water in the basement, grading, and foundation cracks
- ☐ Roof and chimney condition
- ☐ Pipe or duct insulation that may contain asbestos
- ☐ Radon test
- ☐ Sewer line camera scope from the house to the street
- ☐ Windows: operation, rot, painted-shut sashes
- ☐ Permit history for past renovations (check with the City of Newton or ask your attorney)

If you're buying a condo

- ☐ Master deed, trust, bylaws, and rules (rentals, pets, parking, renovations)
- ☐ Current budget and reserve fund balance
- ☐ Planned or recent special assessments
- ☐ Master insurance policy: what it covers and what your unit policy must cover
- ☐ Recent trustee meeting minutes (upcoming projects show up here first)
- ☐ Clean 6(d) certificate before closing

Stage 5: Newton costs to plan for

Property tax

- ❖ Newton FY2026 residential rate: $9.69 per $1,000 of assessed value.
- ❖ Newton sets its FY2027 rate later this fall; check newtonma.gov for the latest rate.
- ❖ How to estimate: assessed value ÷ 1,000 × rate.

- Example: a home assessed at $800,000 → 800 × $9.69 = $7,752 per year, before any exemptions or surcharges.
- Assessed value isn't the same as purchase price.

Costs to get quotes for

Ask your lender, attorney, and inspectors for a number on each of these before you make an offer:

- ☐ Home inspection
- ☐ Lead inspection (pre-1978 homes)
- ☐ Other tests: radon, sewer scope, pests
- ☐ Your attorney
- ☐ Lender closing costs (from your Loan Estimate)
- ☐ Owner's title insurance (optional; ask your attorney)
- ☐ Homeowners or condo unit insurance, per year
- ☐ Condo fee, if any, per month
- ☐ Property tax, per year
- ☐ Moving and first repairs

Questions to ask (continued on next page)

Your attorney

- ☐ Who do you represent at closing?
- ☐ What happens to my deposit if the mortgage commitment is late?
- ☐ Is this sale exempt from the inspection-waiver rule?

Your inspector

- ☐ Are you licensed in Massachusetts, and can I attend?
- ☐ What's outside the scope of your inspection?

The listing agent (ask in writing)

- ☐ Any known issues, past water problems, or open permits?
- ☐ Is there a lead inspection report, Letter of Compliance, or Letter of Interim Control?

Your next step

Contact me with the stage of buying you're in and I can assist you with all the next steps; even if you are just starting. If you send me an area you're looking at, I'll send you current days on market and recent sales for those areas from MLS PIN, plus the questions I'd ask about that type of home.

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Sources

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Disclaimer

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